

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF MAZANOV AND OTHERS v. RUSSIA

(Applications nos. 2954/18 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

23 November 2023

This judgment is final but it may be subject to editorial revision.



In the case of Mazanov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 2 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 5 OF THE CONVENTION

7. The applicants complained principally of the unlawful detention (deprivation of liberty) during the periods indicated in the appended table. They relied, expressly or in substance, on Article 5 § 1 of the Convention.

8. The Court reiterates that that the expressions "lawful" and "in accordance with a procedure prescribed by law" in Article 5 § 1 essentially refer back to national law and state the obligation to conform to the substantive and procedural rules thereof. It is in the first place for the national authorities, notably the courts, to interpret and apply domestic law. However, since under Article 5 § 1 failure to comply with domestic law entails a breach of the Convention, it follows that the Court can and should exercise a certain power to review whether this law has been complied with (see, among numerous other authorities, *Benham v. the United Kingdom*, 10 June 1996, §§ 40-41 *in fine*, *Reports of Judgments and Decisions* 1996-III).

9. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. In the cases of *Fortalnov and Others v. Russia,* nos. 7077/06 and 12 others, 26 June 2018, *Butkevich v. Russia,* no. 5865/07, 13 February 2018, *Korneyeva v. Russia*, no. 72051/17, 8 October 2019, *Tsvetkova and Others v. Russia,* nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018, and *Timishev v. Russia* [Committee], no. 47598/08, 28 November 2017, the Court has already found a violation in respect of the issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the applicants' detention, as described in the appended table, was contrary to domestic law requirements and the "lawfulness" guarantee of Article 5 of the Convention (see the appended table).

11. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Dirdizov v. Russia*, no. 41461/10,

§§ 101-11, 27 November 2012, concerning excessive length of pre-trial detention, *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning absence of a prosecuting party from the administrative proceedings; *Novikova and Others v. Russia,* nos. 25501/07 and 4 others, 26 April 2016, concerning disproportionate measure taken against participants in solo manifestations, *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by authorities against organisers and participants of public assemblies, and *Tsvetkova and Others*, cited above, §§ 178-91, concerning lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention; *Korneyeva*, cited above, §§ 44-65, concerning right not to be tried or punished twice; and *Yartsev v. Russia*, no. 16683/17, §§ 22-38, 20 July 2021, concerning restrictions on the right to freedom of expression).

V. REMAINING COMPLAINTS

13. Some applicants raised additional complaints under Articles 5, 6 and 10 of the Convention. In view of the above findings, the Court considers that there is no need to deal separately with the remainder of the applicants' complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Biryuchenko and Others v. Russia* [Committee], nos. 1253/04 and 2 others, § 96, 11 December 2014), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the unlawfulness of the applicants' arrest and detention during the periods indicated in the appended table and the other complaints under the well-established law of the Court, as set

out in the appended table, admissible and decides that it is not necessary to deal separately with the remainder of the applicants' complaints;

4. *Holds* that these applications disclose a breach of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty) (see the appended table);

5. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 23 November 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	María Elósegui
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	2954/18 11/12/2017	**Aleksandr Sergeyevich MAZANOV** 1990	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017, 2.30 p.m.	13/06/2017, 4.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – decisions by the St Petersburg City Court, on 20/06/2017 (7 days' administrative arrest) and on 11/07/2017 (fine of RUB 10,000), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - convicted twice for participation in one public event in St Petersburg, Marsovo pole, under Articles 19.3 § 1 and 20.2 § 5 of CAO (see above)	3,900
2.	3031/18 20/12/2017	**Pavel Valeryevich CHUGUNOV** 1981	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017, 4.10 p.m.	14/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings - final decisions were taken by the St Petersburg City Court on 23/06/2017 (15 days' administrative detention) and on 08/08/2017 (fine of RUB 10,000), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - convicted twice for participation	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						applications, § 35, 2 July 2019), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	in one public event in St Petersburg, Marsovo pole, under Articles 19.3 § 1 and 20.2 § 5 of CAO (see above)	
3.	3078/18 08/12/2017	**Anna Vladimirovna TROITSKAYA** 1972	Peredruk Aleksandr Dmitriyevich St Petersburg	12/06/2017	14/06/2017	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings – decisions by the St Petersburg City Court, on 21/06/2017, fine of RUB 10,000 and 4 days' administrative arrest ordered by the Frunzenskiy District Court of St Petersburg on 14/06/2017, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - convicted twice for participation in one public event in St Petersburg, Marsovo pole, under Articles 19.3 § 1 and 20.2 § 5 of CAO (see above)	3,900
4.	3166/18 18/12/2017	**Yegor Vladislavovich ARISTOV** 1992	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017, 2.10 p.m.	13/06/2017, unspecified time	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: the applicant remained in	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the two sets of the administrative-offence proceedings - final decisions were taken by the St Petersburg City Court on 20/06/2017 (7 days' administrative arrest) and on 18/07/2017 (fine of RUB 10,000); Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - convicted twice for participation in one public event in St Petersburg, Marsovo pole,	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	under Articles 19.3 § 1 and 20.2 § 5 of CAO (see above)	
5.	3179/18 21/12/2017	**Aleksandr Ivanovich LEBEDEV** 1997	Peredruk Aleksandr Dmitriyevich St Petersburg	12/06/2017, 2 p.m.	13/06/2017, unspecified time	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision was taken by the St Petersburg City Court on 24/04/2018 (fine of RUB 10,000); Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was charged and convicted for participation in one public event in St Petersburg, Marsovo pole, under Articles 19.3 § 1 and 20.2 § 5 of CAO and sentenced to fines of RUB 500 and 10,000, respectively	3,900
6.	3266/18 23/12/2017	**Yevgeniya Alekseyevna CHIVILEVA** 1989		27/02/2022, 5.15 p.m. 12/06/2017, 4.10 p.m.	28/02/2022, 3.30 p.m. 13/06/2017, unspecified time	Applicant taken to the police station as an administrative suspect on two occasions: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under Article 20.2.2 § 1 of CAO for participation on 27/02/2022 in public gathering in St Petersburg / administrative detention of 9 days/ final - St Petersburg City Court on 02/03/2022, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - the applicant was charged and convicted for participation in one public event in St Petersburg, Marsovo pole, under Articles 19.3 § 1 and 20.2 § 5 of CAO and sentenced to fines of RUB 1,000 and 10,000 respectively; relevant final	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							decisions were taken by the St Petersburg City Court on 20/07/2017 (Art.19.3(1)) and 25/07/2017 (Art.20.2(5)), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - absence of the prosecuting party in the first-instance court in all sets of the proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 28/02/2022 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO – final decision: St Petersburg City Court on 02/03/2022	
7.	3490/18 18/12/2017	**Aleksandr Yuryevich GEDZ** 1996	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017	13/06/2017	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019), Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Decision by the St Petersburg City Court on 20/06/2017 (7 days' administrative arrest); Decision by the St Petersburg City Court on 18/07/2017 (fine of RUB 10,000), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - punishment for non-compliance with police orders in the context of the same public event on 12/06/2017 in St Petersburg, Marsovo pole: article 19.3 § 1 of CAO, article 20.2 § 5 of CAO – St Petersburg City Court on 20/06/2017, St Petersburg City Court on 18/07/2017	3,900

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8.	3601/18 18/12/2017	**Denis STADNICHUK** 1977	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017	14/06/2017	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019) , Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Decision by the St Petersburg City Court on 04/07/2017 (fine of RUB 15,000) and by the St Petersburg City Court on 19/06/2017 (15 days' administrative arrest), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - punishment for non-compliance with police orders in the context of the same public event on 12/06/2017 in St Petersburg, Marsovo pole: convictions under article 19.3 § 1 of CAO and article 20.2 § 5 of CAO by the St Petersburg City Court on 19/06/2017 and by the St Petersburg City Court on 04/07/2017	3,900
9.	3630/18 18/12/2017	**Svyatoslav Mikhaylovich CHUMAKOV** 1991	Pyshkin Valentin Valentinovich St Petersburg	12/06/2017	14/06/2017	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019) , Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Applicant taken to the police station as an administrative suspect: no evidence/assessment	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Decisions by the St Petersburg City Court on 19/06/2017 (1-day administrative arrest); and by the St Petersburg City Court on 06/07/2017 (fine of RUB 10,000), Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - punishment for non-compliance with police orders in the context of the same public event on 12/06/2017 in St Petersburg, Marsovo pole:	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	convictions under article 19.3 § 1 of CAO and article 20.2 § 5 of CAO - St Petersburg City Court on 19/06/2017, and St Petersburg City Court on 06/07/2017	
10.	2976/22 07/12/2021	**Revaz SHMERTS** 1980	Yefremova Yekaterina Viktorovna Moscow	08/06/2021, 8.05 a.m. (arrest record indicates allegedly incorrect time of arrest - 08.55 p.m.)	08/06/2021, 9 p.m.	Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018)	Art. 5 (3) - excessive length of pre-trial detention - 08/06/2021 – pending as of 16/09/2022 on the charges of fraud. Courts: Tverskoy District Court; Moscow City Court; Specific defects: fragility of the reasons employed by the courts; use of assumptions, in the absence of any evidentiary basis, of the risks of absconding or obstructing justice; failure to examine the possibility of applying other measures of restraint	3,900
11.	3961/22 03/01/2022	**Aleksey Vladimirovich VOLKOV** 1972	Antokhin Yevgeniy Vyacheslavovich Moscow	21/04/2021	21/04/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), complaint raised on appeal	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision taken by the Moscow City Court on 27/08/2021, 5 days' administrative arrest, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - immediate enforcement of the administrative arrest ordered by the first-instance court given absence of the suspensive effect of the appeal proceedings in the Russian law	3,900
12.	5476/22 12/01/2022	**Zhanna Rafinovna INKINA** 1982		18/08/2021	23/08/2021	Delay of more than a few hours in releasing the applicant (see Butkevich v. Russia, no. 5865/07, § 67, 13 February 2018)		3,000

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13.	7042/22 11/01/2022	**Fedor Aleksandrovich GUBERT** 1990	Balysheva Irina Yuryevna Cherepanovo	03/04/2021, 6.35 p.m.	04/04/2021, 3.45 a.m. (the applicant raised this complaint before the Novosibirsk Regional Court, appeal decision of 13/10/2012)	Detention (criminal) for more than three hours without any written record (see Fortalnov and Others v. Russia, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018)		3,000
14.	7244/22 16/01/2022	**Sergey Ivanovich DEMIDOV** 2001	Nemanov Vladimir Sergeyevich Moscow	07/07/2021, 3.01 a.m.	09/07/2021, 12.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - 16/07/2021, Moscow City Court, administrative detention of 15 days	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
15.	10582/22 16/02/2022	**Viktoriya Markovna IVLEVA-YORK** 1956 **Yuriy Vadimovich SAMODUROV** 1951	Moskalenko Karinna Akopovna Strasbourg	20/11/2021, 1.10 p.m.	22/11/2021, 6.30 p.m.	Applicants taken to the police station as administrative suspects: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the 48-hour statutory period (Art. 27.5(3)-(4) and Art. 29.6(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)		3,000
16.	14482/22 15/02/2022	**Rinat Karamatovich SHARIPOV** 1951		05/02/2019, 6 p.m.	07/02/2019, 11 a.m. The applicant's administrative conviction of unruly behaviour was quashed on appeal on 25/03/2019 by the Supreme Court of the Bashkortostan	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see Korneyeva v. Russia, no. 72051/17, § 35, 8 October 2019) , Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)		2,600

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					Republic. He sued the State authorities for compensation of non-pecuniary damage caused by the unlawful detention and was awarded 30,000 Russian roubles (final decision by the Supreme Court of Russia on 27/12/2021) (approximately EUR 375).			
17.	18110/22 15/03/2022	**Kristina Igorevna TIMAKOVA** 1996	Antokhin Yevgeniy Vyacheslavovich Moscow	22/10/2018	22/10/2018 (The applicant complained about her unlawful detention before the domestic courts: final domestic	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an		3,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					decision by the Supreme Court of Russia on 17/09/2021).	administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see Butkevich v. Russia, no. 5865/07, §§ 63-64, 13 February 2018; Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018); Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017) ,		
18.	20907/22 11/04/2022	**Kseniya Dmitriyevna KLIMOVA** 1997	Mikhaylova Varvara Dmitriyevna St Petersburg	19/09/2021	19/09/2021	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - fine of RUB 5,000, final decision on 15/10/2021 by the Kirov Regional Court	3,900
19.	22543/22 23/03/2022	**Yelena Yevgenyevna LOBOVA** 1967	Olgerdt Oksana Gennadyevna Moscow	03/02/2021, 12.10 a.m.	04/02/2021, 7 p.m. (The applicant raised a complaint of the unlawful detention in	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia		3,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
					the administrative-offence proceedings. The applicant was convicted under 20.2 § 6.1 CAO and was fined 15,000 Russian roubles. Final decision on 23/09/2021 by the Moscow City Court	[Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)		
20.	40946/22 04/08/2022	**Anastasiya Pavlovna MASHCHENKO** 1995	Gak Irina Vladimirovna Rostov-on-Don	28/02/2022, 8 p.m.	01/03/2022, 10.40 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision taken by the Rostov Regional Court on 05/04/2022, sentenced to 7 days' administrative arrest, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of administrative arrest, immediate execution of that sentence after conviction by a trial court	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
21.	50932/22 09/10/2022	**Kristina Andreyevna SHIBALOVA** 1989		24/02/2022, 8.09 p.m.	25/02/2022, 2.35 a.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see Timishev v. Russia [Committee], no. 47598/08, § 21, 28 November 2017)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision taken by the Moscow City Court on 09/06/2022, fine of RUB 20,000, Art. 11 (1) - various restrictions on the right to freedom of peaceful assembly - manifestation against the war in Ukraine, Moscow, Tverskaya, 24/02/2022, Article 20.2 § 5 of CAO, fine of RUB 20,000, final decision taken by the Moscow City Court on 09/06/2022	5,000
22.	55441/22 22/10/2022	**Irina Zimilovna VLADIMIRSKAYA** 1970	Baranova Nataliya Andreyevna Moscow	01/03/2022, 9 p.m.	02/03/2022, 3.45 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision taken by the Moscow City Court on 23/06/2022, fine of RUB 20,000, Art. 10 (1) - various restrictions on the right to freedom of expression - on 01/03/2022 the applicant held a solo picket and was arrested. She had a sign with the inscription "No war". On 16/03/2022 the applicant was convicted of the administrative offence under Art. 20.5 § 5 of CAO, upheld by the final decision of the Moscow City Court on 23/06/2022	5,000
23.	55971/22 12/11/2022	**Nikolay Vladimirovich UTEMOV** 1992	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	25/04/2022, 10.50 p.m.	26/04/2022, 1.35 a.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO,	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision taken by the Nizhniy Novgorod Regional Court on 12/07/2022, fine of RUB 30,000	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)		
24.	57029/22 17/11/2022	**Tatyana Konstantinovna BAYKOVA** 1976	Filatchev Oleg Vladimirovich Moscow	06/03/2022	06/03/2022	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision on 19/07/2022, by the Moscow City Court, sentence of the fine of RUB 20,000	3,900
25.	4797/23 10/01/2023	**Anton Borisovich BOCHANOV** 1986	Markin Konstantin Aleksandrovich Velikiy Novgorod	11/09/2022, 6.14 p.m.	11/09/2022, 8.14 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)		3,000

[1] Plus any tax that may be chargeable to the applicants.